

HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

C. R. No. 1358 / 2017

Mst. Anayatan Bibi & another **Versus** Maqsood Ahmad & another

W. P. No. 9055 / 2019

Shabbir Hussain alias Bagga **Versus** Additional District Judge,
Sahiwal & 03 others

W. P. No. 483 / 2020

Shabbir Hussain alias Bagga **Versus** Additional District Judge,
Sahiwal & 03 others

JUDGMENT

Date of Hearing:	18.01.2022
Petitioner(s) By:	Syed Tajammal Hussain Bukhari, Advocate Syed Liaqat Ali Shah, Advocate
Respondent No. 1 By:	Ch. Muhammad Malik, Advocate
Respondent No. 2 By:	Mr. Javed Ahmad Khan, Advocate Ch. Muhammad Hasnaat Diyal, Advocate

ABID HUSSAIN CHATTHA, J: This consolidated Judgment shall decide the titled Civil Revision and connected Writ Petitions No. 9055 / 2019 and 483 / 2020. The parties in all the Petitions are referred with reference to their description in the titled Civil Revision throughout this Judgment.

2. The Petitioners preferred this Revision against the Judgments and Decrees dated 31.05.2016 and 12.09.2017 passed by Civil Judge, Sahiwal and Additional District Judge, Sahiwal respectively, whereby, the suit for specific performance with permanent injunction instituted by Respondent No. 1 against the Petitioners was concurrently decreed.

3. Respondent No. 1 instituted the suit on 29.04.2006 based on an agreement to sell dated 06.07.2002 (the “**Agreement**”) averring therein

that the predecessor-in-interest of the Petitioners, namely, Ghulam Muhammad alias Goma was allotted land measuring 100 *Kanals* situated in Chak No. 156 / 9-L, Tehsil & District Sahiwal fully described in paragraph No. 1 of the plaint (the “**Property**”) under five years cultivation scheme by the Provincial Government. After death of the allottee, the leasehold rights regarding the Property devolved upon the Petitioners by way of inheritance. The Petitioners executed the Agreement (Ex. P-1) regarding sale of proprietary rights with respect to the Property in favor of Respondent No. 1 for total consideration of Rs. 300,000/- out of which Rs. 50,000/- was paid as earnest money at the time of execution of the Agreement and remaining amount of Rs. 250,000/- was agreed to be paid at the time of transfer of the Property to Respondent No. 1 after the issuance of Conveyance Deed in favor of the Petitioners by the Government of the Punjab. The Agreement was duly registered and possession was handed over to Respondent No. 1. Sale Receipt (Ex. P-2) regarding payment of earnest money was separately recorded. Respondent No. 1 on behalf of the Petitioners was responsible to carry out the entire proceedings before the revenue hierarchy till the issuance and registration of Conveyance Deed including payment of all installments, dues and expenses. Such obligations were duly performed by Respondent No. 1. Eventually, the Conveyance Deed dated 31.03.2004 (Ex.P-6) was issued and duly registered in the name of the Petitioners on 09.04.2004, whereafter, Mutation No. 353 dated 09.08.2004 (Ex. P-4) was also attested and incorporated in revenue record. Respondent No. 1 invoked the terms of the Agreement and required the Petitioners to perform their remaining part of the Agreement after receiving the balance sale consideration. It was specifically proclaimed that Respondent No. 1 performed his part of the Agreement and was always ready and willing to completely perform the Agreement in terms of remaining sale price. However, the Petitioners first delayed and later refused the performance of the Agreement. Hence, Respondent No. 1 was constrained to institute the suit.

4. The Petitioners resisted the suit by filing written statement. It was alleged therein that the Petitioners did not execute the Agreement or sale receipt regarding the sale of ownership rights of the Property. No

stamp paper was purchased for the purposes of the Agreement and they did not sign and thumb marked the Agreement. Setting up a counter story, it was asserted that the Petitioners actually installed a tube-well in Qila No. 8/2 of the Property in order to make it cultivable. However, as the underground water was unfit for agricultural purposes, they sold the tube-well and its related articles to Respondent No. 1 for consideration of Rs. 87,000/- out of which Rs. 50,000/- was paid to them and remaining Rs. 37,000/- was promised to be paid later which is still payable. Execution of Receipt of Rs. 50,000 in this behalf was admitted. Claiming that Respondent No. 1 is an Advocate and was their counsel, the transaction regarding sale of ownership rights of the Property was denied. It was stated that the Petitioners did not have any title over the Property at the relevant time and even rules of the Revenue Department prohibited the sale of ownership rights of the Property. The price of the Property was around Rs. 200,000/- per Acre and the Petitioners were not that naive to have sold it for Rs. 300,000/- (Rs. 24,000/- per Acre approximately). The Petitioners deposited all the public dues in the Government exchequer themselves. As such, the Agreement is fake and based on fraud.

5. Respondent No. 1 was directed on 18.12.2006 to deposit the remaining sale consideration in the Court which was complied with on 09.01.2007 as depicted from Ex. P-7. Keeping in view the divergent pleadings of the parties, the trial Court framed the following issues:-

1. Whether the suit is not maintainable? OPD
2. Whether the Agreement is false and frivolous? OPD
3. Whether the plaintiff has not come to the Court with clean hands? OPD
4. Whether this Court lacks jurisdiction to try this suit? OPD
5. Whether the defendants entered into the Agreement with the plaintiff in consideration of Rs. 300,000/- and executed the Agreement on receipt of Rs. 50,000/- as earnest money? OPP
6. Whether the plaintiff is entitled to get the decree for specific performance of the Agreement along with permanent injunction as prayed for? OPP
7. Relief.

6. In order to prove the case, Respondent No. 1 himself appeared as PW-1. The scribe of the Agreement, Ch. Muhammad Yousaf Ferozपुरi

was produced as PW-2. Two marginal witnesses, namely, Rana Muhammad Ali Khan and Ch. Muhammad Aslam appeared as PW-4 and PW-7, respectively. PW-3, Ahsan Rasheed appeared as son of Ch. Rasheed Anwar, Advocate who was the third marginal witness. Stamp vendor, Syed Ashiq Hussain Gilani appeared as PW-5. Muhammad Zafar Iqbal, Record Keeper appeared as PW-6 and verified the stamp license of the stamp vendor. Muhammad Shakeel Ahmad appeared as PW-8 in his capacity as identifier of the parties before the registration of the Agreement. The official witnesses were also produced, namely, Shahzad Saeed, Sub Registrar as PW-9 and Maqbool Ahmad, Registry *Moharrar* as PW-10. In documentary evidence, Respondent No. 1 produced the Agreement (Ex. P-1, P-5); Receipt of Earnest Money (Ex. P-2); Register of record of rights for the year 2002-2003 & 2006-2007 (Ex. P-3, P-4); Conveyance Deed (Ex. P-6); Receipt of payment of balance consideration (Ex. P-7); *Khasra Girdawari* from *Kharif* 2004 to *Rabi* 2007 (Ex. P-8); Application for entries of *Khasra Girdawari* and *Rapt Roznamcha* as Mark A; Application for correction of entries of *Khasra Girdawari* as Mark B; Applications to stop the proceedings regarding sanctioning of loan against the Property as Marks C, D & E).

7. In rebuttal, Petitioner No. 1 appeared as DW-1 and in documentary evidence, produced copy of *Khasra Girdawari* as Ex. D-1.

8. After hearing arguments of the parties, the Trial Court dismissed the suit of Respondent No. 1 on 17.03.2010. Feeling aggrieved, Respondent No. 1 preferred an Appeal on 02.04.2010 before the Appellate Court. During pendency of the Appeal, Respondent No. 1 filed two different applications for recording of additional evidence which were accepted and in consequence thereof, the Appellate Court vide Judgment dated 31.10.2013 set aside the Judgment and Decree dated 17.03.2010 and remanded the suit to the Trial Court for its decision afresh after recording additional evidence. The Petitioners preferred Civil Revision No. 81 / 2014 before this Court against the aforesaid remand order which was dismissed vide Judgment dated 25.01.2016. Accordingly, additional evidence was recorded by the Trial Court.

9. Respondent No. 1 produced Shaukat Ali, Teacher as PW-11, Altaf Hussain, Patwari as PW-12 and Muhammad Akhtar Sabir, Teacher, as PW-13. *Jamabandi* for the year 2010 & 2011 and documents regarding school record of Petitioner No. 2 were also tendered in documentary evidence as Ex. P-9 to P-14. However, despite having numerous opportunities, the Petitioners did not produce any evidence in rebuttal and their right to this effect was closed on 18.05.2016. As an abundant caution, Respondent No. 1 moved an application for summoning the Petitioners in person to record their evidence but they failed to avail the opportunity. Eventually, the suit was decreed by the Trial Court. The Petitioners instituted an Appeal and during its pendency, Petitioner No. 1 (Mst. Inayatan Bibi) died and Petitioner No. 2 (Rasheed Ahmad) was allowed to continue as sole legal heir of the former vide order dated 27.10.2016. The Appeal was dismissed on 12.09.2017. Hence, the instant Civil Revision.

10. Learned counsel for the Petitioners submitted that the impugned Judgments and Decrees are against the law and facts and are result of misreading and non-reading of evidence on record. He contended that strangely five witnesses including Respondent No. 1 and marginal witnesses were all Advocates. As such, Respondent No. 1 successfully but fraudulently got executed the Agreement within the precinct or vicinity of District Court and the Petitioners vis-à-vis lawyers could not bring the real evidence on record. Hence, this case ought to be decided on the basis of circumstantial evidence since Respondent No. 1 as lawyer of the Petitioners misused the privilege of professional advice by committing breach of fiduciary duty. He asserted that fraud is evident from the fact that the total sale consideration mentioned in the Agreement was grossly inadequate and disproportionate to prevailing market value in 2002. Petitioner No. 1 was a *Parda Nashin* lady and no independent advice was available to her since independent advice was that of her lawyer who himself compromised the cause by fraudulently entering into the Agreement. It was also claimed that the description of the Property listed in the Agreement and the plaint is not identical which demonstrates that not only Respondent No. 1 was unaware of exact location and description of the Property but also the Agreement could not be specifically enforced.

Without prejudice to the same, he emphasized that specific performance of the Agreement is a discretionary relief under the Specific Relief Act, 1877 (the “SRA”) and the facts, nature and circumstances of the case do not allow specific enforcement of the Agreement in view of the provisions of Sections 17, 21 and 22 of the SRA. Citing reasons, he stated that the Agreement was not enforceable in its entirety as the description of the Property in the plaint and the Agreement is inconsistent; the terms of the Agreement are not ascertainable with reasonable certainty; the Agreement in its nature is revocable; its performance involves performance of a duty extended over a longer period than three years; and the circumstances leading to its execution confer an unfair advantage to Respondent No. 1 over the Petitioners. To support his contentions, he placed reliance on cases titled, “Malik Tanveer Ali and another v. Sardar Ali Imam and 2 others” (2010 YLR 1799); “Mian Muhammad Saleem and others v. Mst. Hameeda Begum and others” (1987 SCMR 624); “Fida Hussain v. Jalal Khan” (NLR 2002 Civil 82); “Mst. Sajeda Mushtaq v. Federation of Pakistan through Secretary Ministry of Interior and 3 others” (2019 YLR 2364); “Rajasthan Breweries Ltd. v. The Stroh Brewery Company” (AIR 2000 Delhi 450); “Classic Motors Ltd. v. Maruti Udyog Ltd.” (1997 IAD Delhi 190); “Jamahir Sao and another v. Satrughna Sonar and another” (AIR 1961 PATNA 482); and “Hameedullah and 9 others v. Headmistress, Government Girls School, Chokara, District Karak and 5 others” (1997 SCMR 855).

11. It was vehemently asserted that relationship of counsel and client was established in this case and this relationship being fiduciary in nature could not be allowed to betray the cause of the Petitioners as it gives rise to a special presumption that a person is deemed to be in a position to dominate the will of another where he holds the real or apparent authority over the other. The relationship of lawyer and client is unequal and the personal ascendancy of lawyer over client is a factor which cannot be ignored. Hence, the Agreement even if proved cannot be ordered to be performed. Reliance was placed on cases titled, “Director of Intelligence and Investigation v. Aslam Hashim Butt” (2016 CLC 1884); “Gouri Shankar Misra and Anr. v. Fakir Mohan Dash and Ors.” (AIR 1989 Ori

201); “Ladli Parshad Jaiswal v. The Karnal Distillery Co., Ltd. Karnal and others” (AIR 1963 Supreme Court 1279); and “Amrit Lal C. Shah v. Ram Kumar, Advocate” (1962 AIR (Punjab) 325).

12. Learned counsel for the Petitioners while placing reliance on case titled, “Muhammad Bashir v. Gohar Naseem” (2016 YLR 565) contended that where a contract was not scribed by a licensed Deed Writer rather drafted by an Advocate, the latter could not be treated at *par* with the former and his deposition would have no evidentiary value for not having produced his register for examination of Court. This is specially so when the seller was illiterate person and in such an eventuality, the beneficiary of the said document was bound to establish through strong evidence that not only the document had been executed by the said person but also that such person had fully understood the contents of the document under execution. Reliance was also placed on case titled, “Syed Shabbir Hussain Shah and others v. Asghar Hussain Shah and others” (2007 SCMR 1884) to assert that in order to prove due execution of a document, mere signature or thumb impression on the document is not enough but more solid and cogent evidence must be brought on record to prove its due execution. Case titled, “Abdul Hameed v. Mst. Aisha Bibi and another” (2007 SCMR 1808) was also relied upon to assert that where a signature or thumb impression was not denied regarding a contract but its contents were denied on the basis that the signature and thumb impression were obtained on a blank paper, then mere admission of the seller regarding his thumb impression or signature on the contract is not sufficient to prove its execution and contents. Similarly, it was stated that in case titled, “Nazar Muhammad and 4 others v. Mst. Rabia Bibi and another” (2006 CLC 1444), a contract was declared to be result of fraud because it was not proved that the document was ever read over and explained to the lady prior to its execution. Learned counsel further contended that the maxim, *Consensus ad idem*, is squarely applicable to the facts and circumstances of the case as there was no meeting or consensus of minds between the Petitioners and Respondent No. 1 with respect to the Agreement. Reliance in this behalf was placed on cases titled, “Farzand Ali and another v. Khuda Bakhsh and others” (PLD 2015 Supreme Court 187); and “Syed

Adnan Ashraf v. Syed Azhar-ud-Din through Attorney” (2014 MLD 342). He further relied upon case titled, “Nanjegowda and another v. Gangamma and others” (2012 SCMR 1246) to submit that benefit of part performance is not available without conclusive prove of possession which was never proved accordingly in the instant case and even today, it is not with Respondent No. 1. Learned counsel added that testimonies of the witnesses of Respondent No. 1 were not consistent with regard to the venue where the transaction was settled and as such, evidence available on record was not sufficient to prove the due execution and contents of the Agreement. Reliance was placed on the case of Muhammad Bashir (supra). As such, the transaction was not proved and even if the same is found by this Court to be proved, the specific performance of the Agreement cannot be granted.

13. Finally, it was argued that even otherwise the suit was not maintainable without deposit of the remaining consideration on the date of first appearance before the Court. It is admitted on record that a mere amount of Rs. 50,000/- was paid against Rs. 300,000/- from the alleged total sale consideration of the Property. Even this inadequate and inconceivable sale price was not paid as ordained by law. The remaining amount was not paid to demonstrate the readiness and willingness of Respondent No. 1 to perform his part of the contract. Reliance was placed upon case titled, “Hamood Mehmood v. Mst. Shabana Ishaque and others” (2017 SCMR 2022) to add that where a party sought enforcement of a contract under the SRA, it was mandatory for such party that on first appearance before the Court or on the date of institution of the suit, it must apply to deposit the balance amount and any omission in this regard would entail to dismissal or decree of the suit. Further, in case titled, “Mst. Rehmat and others v. Mst. Zubaida Begum and others” (2021 SCMR 1534), it was held that if balance consideration was not offered or paid earlier, best time to demonstrate such readiness and willingness to perform was offering balance sale consideration at the time of filing of the suit for specific performance. In this behalf, learned counsel also relied upon cases titled, “Mst. Murshida Khatoon v. Ch. Abdul Rehman Sahi and another” (2021 MLD 15); and “Muhammad Yousaf v. Allah Ditta and others” (2021 SCMR 1241). As such, the failure on the part of Respondent No. 1 to

deposit the balance sale consideration in the Court on the date of first appearance shows his inability and lack of readiness to make payment. Hence, there was no justification for the Courts below to decree the suit.

14. In rebuttal, learned counsel for Respondent No. 1 argued that there are concurrent findings of facts recorded by the Courts below and there is no occasion to interfere in such findings by this Court in exercise of revisional jurisdiction unless the same are proved to be result of misreading and non-reading of evidence on record. The scope of Revision is limited and a Revisional Court may not investigate the facts or exercise its jurisdiction on the basis of facts never disclosed or relied upon before the subordinate Courts to substitute the concurrent decisions merely because another view is possible. Reliance was placed on cases titled, “Muhammad Fareed Khan v. Muhammad Ibrahim etc.” (2017 SCMR 679); “Mst. Ghulam Sakina and 6 others v. Karim Bakhsh and 7 others” (PLD 1970 Lahore 412); and “Malik Muhammad Hussain v. Saadullah Khan” (2014 CLC 311).

15. He stated that the claim of Respondent No. 1 is simple and straightforward based on a registered Agreement regarding the Property. The Petitioners did not plead in the written statement that Respondent No. 1 as an Advocate procured their signatures on blank papers and used the same for execution of the Agreement. Rather, in paragraph No. 3 of the written statement, the Petitioners claimed that they sold a tube-well to Respondent No. 1 through the Agreement and executed a receipt of Rs. 50,000/- which means that the Agreement, the contractual relationship and engagement of the Petitioners with Respondent No. 1 was admitted along with the receipt of consideration. Respondent No. 1 specifically alleged in paragraph No. 3 of the plaint that possession has been transferred to him which fact was not denied by the Petitioners in their written statement. As per Article 103 of the Qanoon-e-Shahadat Order, 1984 (the “QSO”), Respondent No. 1 as plaintiff was under a legal obligation to prove execution of the Agreement only with respect to his suit for specific performance. As such, Respondent No. 1 duly discharged his onus to prove the Agreement and receipt of sale consideration. According to Articles 117, 118 and 103 of the QSO, the onus to prove fraud, intimidation, undue

influence, illegality, want of due execution, want of capacity, mistake or any separate oral agreement is on the person alleging the same but the Petitioners did not discharge such onus.

16. Respondent No. 1 took possession of the Property in terms of Section 53-A of the Transfer of Property Act, 1882. The Agreement was attested by marginal witnesses as required under Article 79 of the QSO. Respondent No. 1, scribe, three marginal witnesses, stamp vendor and official witnesses consistently deposed regarding various aspects of the transaction including the execution of the Agreement, the date, time and place of its execution, payment of part consideration in their presence to the Petitioners and transfer of possession of the Property to Respondent No. 1. These facts were not controverted even in cross-examination since no suggestion was put to the witnesses in this regard. A registered contract also carries a presumption of payment of consideration under Section 25 of the Contract Act, 1872. Reliance was placed on case titled, “Munawar Hussain etc. v. Amanat Ali etc.” (NLR 2007 Civil 395). It was submitted that Respondent No. 1 firstly claimed possession through the Agreement and secondly, through the contents of the plaint, whereafter, the fact of possession in his favour was proved through witnesses, *Khasra Girdawari* and *Jamabandi*. The fact of possession was finally proved when Patwari (PW-12) appeared along with record and confirmed the possession of Respondent No. 1 over the Property, thereby, disproving the sole document, that is, *Khasra Girdawari* (Ex. D-1) produced by the Petitioners.

17. Learned counsel for Respondent No. 1 added that there is no bar in the law for an Advocate to be a witness to the transaction or the Agreement. The terms, “related witness” and “interested witness” are two different concepts. A witness may be related but should not be an interested witness. In the instant case, there is no evidence on record to show that witnesses of Respondent No. 1 were interested witnesses. There is no suggestion to the effect that the Advocates were interested witnesses or they acted fraudulently or with any *mala fide* intention or were otherwise not trustworthy. Reliance was placed on case titled, “Abdul Rahim v. Mukhtar Ahmad and 6 others” (2001 SCMR 1488). Learned counsel also

submitted that Petitioner No. 1 was not a *Parda Nashin* lady. He stated that Petitioners No. 1 & 2 were related to each other as mother and son, respectively. The mother had 1/8th share and son had 7/8th share in the Property. The mother was accompanied by her educated son who was matriculate which fact was proved through production of additional evidence regarding school record and teachers of Petitioner No. 2. As such, Petitioner No. 1 had advice of her son and even brother of her husband was present when the Agreement was attested by Notary Public. Hence, the plea of *Parda Nashi* lady was not relevant in view of law enunciated in cases titled, “Mst. Zeeshan Zehra v. Muhammad Abdul Salam and 5 others.” (2012 CLC 612); “Mst. Rahat Begum v. Syed Hashmat Ali Shah through Legal Representatives and others” (2004 CLC 1459); and “Sughran Bibi v. Mst. Aziz Begum and 4 others” (1996 SCMR 137).

18. Repelling the argument of wrong or misdescription of the Property as stated in the Agreement vis-à-vis the plaint, learned counsel for Respondent No. 1 stated that the plea is belated and frivolous. In the instant case, the description of the Property is in line with that of the plaint, the Agreement, the revenue record and oral evidence on record in terms of *Khewat* number, *Khatooni* number, Lot number, Square number and *Chak* number. The minor discrepancies pointed out by the Petitioners are on account of the fact that due to Regulations of the Colony Department, the access land was slashed from the allotment and retained up to the subsistence holding, i.e. 100 *Kanals* and Conveyance Deed was executed, accordingly. Respondent No. 1 had purchased the total allotted land measuring 100 *Kanals* and there was never any ambiguity regarding the identity of the Property. Responding to the allegation of inadequacy of sale consideration, he submitted that the consideration of the Property as agreed between the parties was not inadequate and consent to the Agreement was freely given. The Property at the time of the Agreement was *banjar* and underground water was unfit for agricultural use. The Petitioners did not produce any proof of inadequacy of sale consideration and failed to discharge the onus of proof in this regard. He provided certified copies of mutation No. 459 dated 06.01.1999 and mutations No. 326 & 328 for the year 2002 & 2003 to demonstrate that land in the concerned revenue estate

was sold for Rs. 24,860/- per Acre at the relevant time. As such, he pleaded that the impugned Judgments and Decrees are well reasoned and based on correct and true appreciation of evidence and law.

19. Arguments were heard and evidence on record was duly scrutinized with the able assistance of learned counsels for the parties in light of referred case law. Their due assistance is candidly acknowledged and highly appreciated by this Court.

20. The main controversy is encapsulated in issues No. 5 & 6. The former pertains to due execution of the Agreement for total consideration of Rs. 300,000/- against earnest money of Rs. 50,000/-, whereas, the latter is regarding entitlement of Respondent No. 1 to the decree for specific performance of the Agreement.

21. Respondent No. 1 while appearing as PW-1 reiterated the contents of the plaint. He stated that the entire transaction was undertaken in presence of the witnesses including payment of the earnest money which fact was admitted by the Petitioners before the Sub-Registrar. He also confirmed that possession of the Property was handed over to him. He deposed that all expenses for securing ownership rights regarding the Property were borne by him. After the grant of proprietary rights regarding the Property, the Petitioners were specifically contacted for payment of remaining sale consideration which was denied. During cross-examination, Respondent No. 1 admitted that he is an Advocate working in the chamber of Ch. Yousaf Ferozpuri, Advocate and had pursued the matter of grant of proprietary rights of the Property. He deposed that a tube-well was installed at the Property but it was dismantled and removed by the Petitioners. PW-2 as scribe of the Agreement confirmed that the Agreement was drafted by him on the instructions of the parties and they as well as the witnesses executed the Agreement in his presence. Earnest money was paid in presence of the marginal witnesses. Stamp paper was duly purchased for this purpose and he identified the parties. PW-4 and PW-7 also testified in favor of Respondent No. 1 in their capacity as marginal witnesses. They categorically confirmed the execution and contents of the Agreement which was stated to have been executed by the parties in their presence and they witnessed the same. PW-3 entered the witness box as son of the third

marginal witness, namely, Rasheed Anwar, Advocate. He acknowledged and recognized the signatures of his father on the Agreement. Similarly, the testimony of Stamp Vendor also favored Respondent No. 1 who deposed that at the back of stamp paper, Petitioners No. 1 and 2 affixed their thumb impression and signature, respectively who were identified by Ch. Muhammad Yousaf who also affixed his signature on the back of the Stamp Paper. Sub-Registrar appeared as PW-9 and Registry *Moharrar* as PW-10. They also testified the validity and authenticity of the Agreement. The Agreement (Ex. P-1) and receipt (Ex. P-2) regarding payment of earnest money were duly exhibited.

22. Respondent No. 1 had specifically claimed in the plaint that possession of the Property was handed over at the time of execution of the Agreement. The contents of the Agreement itself recorded the said fact. The Petitioners never denied this fact in their written statement. Petitioner No. 1 in her deposition conceded that Respondent No. 1 was in possession of the Property for the last 7 to 8 years. Additional evidence tendered by Respondent No. 1 confirmed his possession on the basis of oral testimony of Patwari and production of *Khasra Girdawari*. As such, Respondent No. 1 successfully proved his possession qua the Property.

23. Petitioner No. 1 appeared as DW-1 and submitted that after the death of her husband, she engaged Respondent No. 1 for preparation of Conveyance Deed. She denied execution of the Agreement regarding the Property and reiterated her version taken in the written statement that she sold a tube-well to Respondent No. 1 against consideration of Rs. 87,000/- and admitted receipt of Rs. 50,000/-. She claimed that balance amount of Rs. 37,000/- is still pending towards Respondent No. 1. As such, the receipt of Rs. 50,000/- from Respondent No. 1 was admitted by the Petitioners in the written statement as well as in her deposition regarding sale of tube-well. She importantly stated that the agreement of sale of tube-well took place in the presence of Mashkoor Wattoo and Sharif Wattoo. As such, she admitted the Agreement but claimed exception that it was for the sale of tube-well. Hence, the onus to prove the receipt of Rs. 50,000 on account of sale of tube-well rested upon the Petitioners which was not discharged. The witnesses regarding transaction of sale of tube-well were cited by Petitioner

No. 1 herself yet such witnesses were not produced. Even Petitioner No. 2 as owner to the extent of 7/8th share in the Property did not enter the witness box without any plausible explanation regarding his absence. As such, the best evidence was withheld by the Petitioners to prove their counter stance in terms of Article 129(g) of the QSO. For reference see case titled, “Dilshad Begum v. Mst. Nisar Akhtar” (2012 SCMR 1106). Further, no action for recovery of remaining amount of Rs. 37,000/- for the alleged sale of tube-well was initiated by the Petitioners against Respondent No. 1.

24. There is no doubt that the relationship between a counsel and client is privileged and sacred but the existence, nature, scope, time of initiation and termination of such relationship was neither particularly pleaded nor conclusively proved by the Petitioners. No power of attorney was exhibited in this behalf. There is no evidence that there was any separate pending cause of the Petitioners regarding which Respondent No. 1 acted as their counsel since the Agreement itself conferred specific rights and powers to Respondent No. 1 to pursue the matter of allotment with the Governmental authorities regarding grant of proprietary rights in favor of the Petitioners. Later, through C.M. No. 2167-C / 2021, a photocopy of power of attorney was placed on record which though has no evidentiary value, is even otherwise dated 25.03.2003 i.e. after the date of execution of the Agreement. More so, when it was acceptable to the Petitioners to have entered into a transaction for sale of tube-well with Respondent No. 1, they were estopped to question the transaction regarding sale of proprietary rights of the Property. Further, the mere fact that most of the witnesses were Advocates does not by itself lead to any adverse inference as Advocates are not barred to witness a transaction. Rather, it was quite natural as the Agreement was executed in the vicinity of the District Courts. The credit worthiness or truthfulness of the witnesses was not questioned during their testimonies. In case titled, “Muhammad Ilyas v. Ghulam Muhammad and another” (1999 SCMR 958), it was held that “*it is settled law that a witness who comes in the witness-box is presumed to be truthful unless this presumption is rebutted in the cross-examination by showing the features in his testimony rendering him untruthful*”. Hence, it

was not proved that Respondent No. 1 as Advocate had defrauded the Petitioners by executing the Agreement.

25. Petitioner No. 1 further testified that she did not know regarding affixation of her thumb impression on the Agreement and that Respondent No. 1 as counsel took her thumb impressions on different blank papers. She also stated that Petitioner No. 2 is her son who is illiterate and did not affix signature or thumb impression on the Agreement. In this context, it was attempted to argue that Petitioner No. 1 was a *Parda Nashin* lady and Petitioner No. 2 was illiterate, and as such, have been defrauded through the execution of the Agreement which was actually made for the sale of tube-well. The deposition to this extent was beyond pleadings. Such averments were never taken in the written statement and no particulars of fraud were specified. There is no independent evidence on record to corroborate and substantiate the statement. Moreover, additional oral evidence produced by Respondent No. 1 proved that Petitioner No. 2 was not an illiterate person and as such, independent advice was available to Petitioner No. 1. There is also evidence on record to suggest that Petitioner No. 1 was accompanied by brother of her husband and her son in whose presence the Agreement was attested by notary public. Accordingly, though Petitioner No. 1 did not claim herself to be a *Parda Nashi* lady yet even if she was to be so regarded, she had trustworthy and reliable independent advice with respect to the contents of the Agreement. The act of registering the Agreement also establishes that there was no intention to keep the Agreement as secret or confidential.

26. The description of the Property was compared as provided in the Agreement and in the plaint. There were only minor discrepancies regarding *Killa* numbers. However, the Property was sufficiently described in terms of *Khewat* number, *Khatooni* number, Lot number, Square number and *Chak* number. There was never any ambiguity in the identity of the Property throughout the *lis*. Such a plea was never taken in the written statement or in the deposition of Petitioner No. 1. The Conveyance Deed regarding the Property was duly exhibited. The Petitioners had no other Property in the concerned revenue estate except the Property. Even the Agreement carried the word “*Kam-o-Baish*” meaning more or less 100

Kanals. As such, the Property was fully identifiable with reasonable certainty. Hence, the objection to this effect is immaterial and the Agreement did not fall under Section 21(c) of the SRA which stipulates that a contract cannot be specifically performed whose terms the Court cannot find with reasonable certainty.

27. The argument that the Agreement scribed by a lawyer instead of a licensed Deed Writer is not worthy of evidentiary value, is misconceived. In the instant case, the Agreement was duly proved through marginal witnesses and other witnesses including the scribe of the Agreement, stamp vendor, Sub-Registrar and Registry *Moharrar*. The case law cited by the learned counsel of the Petitioners is clearly distinguishable for the reason that solid, reliable and cogent evidence was brought on record to establish the due execution of the Agreement and its contents. The requirements of Article 79 of the QSO were fulfilled in the instant case.

28. Section 12 of the SRA stipulates that specific performance of a contract is a discretionary relief. The relief is permissible in terms of its Clauses (b) and (c), when there exists no standard for ascertaining the actual damage caused by non-performance of the act agreed to be done or when the act agreed is such that pecuniary compensation caused by non-performance would not be considered as an adequate relief. An explanation thereto proclaims that unless and until the contrary is proved, the Court shall presume that the breach of a contract to transfer immovable property cannot be adequately relieved by compensation in money. Section 22 of the SRA provides that the discretion of the Court should not be exercised arbitrary but judiciously based on sound and reasonable principles in a manner that it is capable of correction by a Court of appeal. In this behalf, it was urged that this Court should reverse the grant of specific relief in terms of explanation I of Section 22 of the SRA since the circumstances under which the Agreement is made are such which give Respondent No. 1 an unfair advantage over the Petitioners though there may be no fraud or misrepresentation on the part of Respondent No. 1. This Court has already concluded above that the evidence on record does not prove that Respondent No. 1 had an unfair advantage over the Petitioners merely

because he was an Advocate. Similarly, the plea of inadequacy of sale consideration was not established by the Petitioners by producing evidence in this regard within the scope and mandate of Section 28(a) of the SRA which permits refusal of specific performance of a contract to a party on the ground of grossly inadequate consideration with reference to state of things existing at the date of the contract if the same either by itself or coupled with other circumstances establishes fraud or undue advantage vis-à-vis the other party. No evidence regarding prevailing market value in the concerned revenue estate was brought on record by the Petitioners. No fraud or undue advantage was proved on record. Rather, on the other hand, *Jamabandi* brought on record proves that the Property at the time of the Agreement was *banjar*. DW-1 herself admitted that canal water was not sanctioned for the Property while sub-soil water was unfit for agricultural use. Importantly, at the time of the Agreement, the Petitioners were not owners of the Property and there was a risk as to whether the allotment of the Property would ever mature or culminate into complete ownership. Accordingly, the Petitioners failed to demonstrate that the sale price was inadequate. In case titled, “Irshad Hussain v. Ijaz Hussain, etc.” (**NLR 1994 SCJ 134**), the Apex Court held that mere inadequacy of sale price is not a ground for refusing specific performance of a contract when the same is otherwise proved since discretion vested with the Court must be exercised judiciously.

29. Preponderance of evidence on record establishes that the Agreement was duly executed in accordance with law against payment of earnest money. Respondent No. 1 demonstrated part performance of the Agreement and his *bona fide*, readiness and willingness to perform the Agreement by depositing the remaining sale consideration in Court in compliance with the directions of the Court. As such, the contention that Respondent No. 1 is not entitled to grant of specific performance of the Agreement since he did not deposit remaining sale consideration on the first date of hearing is misconceived in view of the law laid down in case titled, “Muhammad Asif Awan v. Dawood Khan and others” (**2021 SCMR 1270**). There are concurrent findings recorded by the Courts below to this effect. In the absence of any misreading and non-reading of evidence, the

same are liable to be maintained. For reference see case titled, “Muhammad Idrees and others v. Muhammad Pervaiz and others” (2010 SCMR 5). The case law relied upon by the Petitioners is distinguishable and is not applicable to the peculiar facts and circumstances of the case. It is trite law that each case must be decided on the basis of its own facts. Hence, Respondent No. 1 has lawfully been held entitled to specific performance of the Agreement by the Courts below.

30. The Honorable Supreme Court of Pakistan in case titled, “Malik Bahadur Sher Khan v. Haji Shah Alam and others” (2017 SCMR 902) while deliberating upon time as essence of the contract took notice of prevailing ground reality and emphasized that in the twenty first century, it would be unfair, unjust and even inequitable to not take into account the fact that every passing day brings a decrease in the value of rupee and a manifold increase in the prices of land and as such, ordered an additional payment of a specified amount to the vendor against return of earnest money. In innumerable cases, the Apex Court while fashioning discretionary relief, has employed equitable approach in transactions of immovable property to strike a balance between the financial interests of a buyer and a seller depending upon the facts and circumstance of each case. The exercise of such discretion is within the mandate and ambit of the SRA. If applied properly, timely, justly and fairly, it can also help resolve property disputes between the parties swiftly. If at the end of protracted litigation windfall gains in favor of one party at the cost of other party are eliminated or minimized through a balancing act of the Court in exercise of discretion, it will discourage protracted litigation being futile and would act as an incentive for the parties to settle their mutual claims expeditiously. Reliance is placed on cases titled, “Muhammad Hussain and others v. Dr. Zahoor Alam” (2010 SCMR 286) and Mst. Rehmat case (supra).

31. In the instant case, earnest money was merely Rs. 50,000/- against remaining sale consideration of Rs. 250,000/- which was payable at the time of transfer of the Property after the date of execution of Conveyance Deed on 31.03.2004 which was eventually paid on 18.12.2006 under the directions of the Court. As such, there is a gap of about 32 to 33 months. Further, Respondent No. 1 enjoyed possession of the Property

since the date of the Agreement. Accordingly, Respondent No. 1 is directed to pay an additional amount of Rs. 1,500,000/- as compensation for delayed payment and continued possession to the Petitioners.

32. During the pendency of this Civil Revision, Respondent No. 2 was allowed to become a party by virtue of acceptance of C. M. No. 638 / 2018 under Order I, Rule 10 of the Code of Civil Procedure, 1908 (the “**CPC**”) with consent of the parties vide order dated 12.10.2021 and was heard, accordingly. Writ Petitions No. 483 of 2020 and 9055 of 2019 were filed by Respondent No. 2 against the Petitioners and Respondent No. 1.

33. W.P. No. 483 / 2020 was directed against the impugned Order dated 21.10.2019, whereby, Additional District Judge, Sahiwal was pleased to dismiss an Application of Respondent No. 2 under Section 12 (2) of the CPC seeking to set aside the Judgments and Decrees dated 31.05.2016 and 12.09.2017 passed in favor of Respondent No. 1 and against the Petitioners. W.P. No. 9055 / 2019 was instituted against the impugned orders dated 31.07.2018 and 01.03.2018, whereby, an Objection Petition of Respondent No. 2 under Section 47 read with Section 151 of the CPC in the pending Execution Petition of Respondent No. 1 to execute the Judgment and Decree dated 31.05.2006 against the Petitioners was concurrently dismissed by the Courts below. It is noted that both the constitutional Petitions were not competent as appropriate remedy by way of Civil Revision was available under the law and accordingly, are converted into Civil Revisions in view of law enunciated in case titled, “Mian Asghar Ali v. Government of Punjab through Secretary (Colonies) BOR, Lahore and others” (2017 SCMR 118).

34. The common facts in both the Petitions alleged by Respondent No. 2 are that an agreement to sell dated 01.12.2001 (the “**First Agreement**”) regarding sale of proprietary rights of the Property was executed between the Petitioners and Respondent No. 2 against total sale consideration of Rs. 3,750,000/- out of which Rs. 2,000,000/- was paid as earnest money at the time of execution of First Agreement and balance amount of Rs. 1,750,000/- was payable at the time of transfer of the Property in the name of Respondent No. 2 after registration of Conveyance Deed in favor of the Petitioners by the Provincial Government. Further,

Respondent No. 2 was responsible to bear complete expenses including payment of lease money and public dues regarding the Property till issuance of Conveyance Deed. As such, the Petitioners received different amounts from Respondent No. 2 from time to time. Eventually, Conveyance Deed was issued on 31.03.2004 followed by mutation No. 353 dated 09.08.2004. Thereafter, the Petitioners transferred the Property to Respondent No. 2 vide mutation No. 537 dated 16.11.2013 after obtaining an additional amount of Rs. 7,000,000/-.

35. In the Application under Section 12(2) of the CPC, it was averred by Respondent No. 2 that he often remained outside the country on account of his professional engagements. Lately, he came to Pakistan and was shocked to know that Respondent No. 1 has obtained Judgments & Decrees dated 31.05.2016 and 12.09.2017 in his favor regarding the Property. The same are liable to be set aside for the reason that the First Agreement in favor of Respondent No. 2 is prior in time and still intact on the basis of which mutation No. 537 dated 16.11.2013 has been duly attested in favor of Respondent No. 2. Hence, the Agreement in favor of Respondent No. 1 is based on fraud and misrepresentation and as such, the impugned Judgments & Decrees in favor of Respondent No. 1 and against the Petitioners could not have been passed. The Petitioners supported the version of Respondent No. 1.

36. The Appellate Court vide impugned Order dated 21.10.2019 held that since the aforesaid Judgments are also impugned in the titled Civil Revision and an Application of Respondent No. 2 to become a party thereto is pending before this Court, therefore, the Application under Section 12(2) of the CPC can be best adjudicated by this Court.

37. The bare contents of the Application under Section 12(2) of the CPC clearly establish that the Application was collusive in concert with the Petitioners in an attempt to frustrate the concurrent Judgments and Decrees passed by the Courts below in favor of Respondent No. 1. There is no allegation of fraud or misrepresentation against the Petitioners or Respondent No. 1 or revenue officials. There is no averment that Respondent No. 1 was aware of the First Agreement and intentionally or fraudulently did not implead Respondent No. 2 as party to the suit. In fact,

the Petitioners never disclosed the existence of any prior transaction including the First Agreement in their written statement yet got attested mutation No. 537 dated 16.11.2013 in favor of Respondent No. 2. The alleged existence of the First Agreement was disclosed for the first time when this Application was filed. It is settled law that an agreement to sell does not create any right unless it is performed by the parties themselves or through the Court. Admittedly, the impugned Judgments and Decrees dated 31.05.2016 and 12.09.2017 were rendered when the alleged First Agreement was not performed between the Petitioners and Respondent No. 2 and the latter till date did not file any independent suit for specific performance against the Petitioners seeking performance of the First Agreement. As such, the allegation of mere existence of the First Agreement in favor of Respondent No. 2 is meaningless in contrast to the Agreement in favor of Respondent No. 1 regarding which specific performance was sought through the Court and ordered as such, as depicted from the impugned Judgments and Decrees. Respondent No. 2 failed to disclose any valid reason for not filing the suit seeking specific performance of the First Agreement. This is especially so since during the intervening period between the issuance of Conveyance Deed dated 31.03.2004 and filing of Application under Section 12(2) of the CPC on 02.02.2018, Respondent No. 2 never required the Petitioners to perform the First Agreement. The performance, however, was claimed through attestation of oral sale mutation No. 537 dated 16.11.2013 in favor of Respondent No. 2. In the absence of suit seeking performance of the First Agreement between the Petitioners and Respondent No. 2 and in the presence of pending *lis* for specific performance between the Petitioners and Respondent No. 1, mutation No. 537 dated 16.11.2013 at best can be considered as subsequent purchase which if taken in isolation from the First Agreement is hit by the principle of *lis pendens* which entails that the subsequent purchaser is merely a representative of the seller and has no independent right or footing. The August Supreme Court of Pakistan has held that even innocent subsequent purchaser has no independent right. He may have purchased the Property at his own risk and cost and will sink and swim with the Petitioners. Reliance is placed on cases titled, “Muhammad

Ashraf Butt and others v. Muhammad Asif Bhatti and others” (PLD 2011 Supreme Court 905); and “Muhammad Sabir Khan and 13 others v. Rahim Bakhsh and 16 others” (PLD 2002 Supreme Court 303).

38. It is noted that since the initiation of the *lis* on 29.04.2006 between the Petitioners and Respondent No. 1, various *status quo* orders were passed by the Courts regarding the Property which were recorded in revenue record vide Rapt No. 283 dated 03.05.2006 and Rapt No. 266 dated 02.04.2010. Revenue record in the nature of *Rapt Roznamcha*, *Jamabandi* and *Khasra Girdawari*, *ipso facto*, reveal the existing litigation from different angles. It is, therefore, inconceivable that Respondent No. 2 was not aware of the pending litigation between the Petitioners and Respondent No. 1. It clearly establishes that the said mutation was attested in favor of Respondent No. 2 in collusion with the Petitioners and revenue officials. Mere occasional traveling out of country is not a valid reason advanced by Respondent No. 2 to plead ignorance from fact of existing litigation regarding the Property or failure to file the suit for specific performance against the Petitioners. Article 150 of the Constitution of the Islamic Republic of Pakistan, 1973 (the “**Constitution**”) unequivocally proclaims that full faith and credit shall be given to public acts and record as well as to judicial proceedings. Public revenue record evidencing litigation regarding the Property was available before the date of attestation of alleged mutation by the Petitioners in favor of Respondent No. 2 which was intentionally, deliberately and fraudulently attested to circumvent, defeat and frustrate the judicial pronouncements in the nature of impugned Judgments and Decrees passed in favor of Respondent No. 1. The constitutional dictate of according full faith and credit to public record and judicial proceedings means that they are sacrosanct, credit worthy and unimpeachable unless the party claiming exception thereto can establish otherwise through cogent, reliable and irrefutable reasons. This in turn implies that in the absence of any evidence to the contrary, mandate of Article 150 of the Constitution in giving full faith and credit to public record and judicial pronouncements must prevail. One facet of this constitutional principle is that where the fact of pending litigation is duly incorporated in relevant public record for the information of public at large,

the onus is upon the beneficiary of any subsequent transaction undertaken in defiance or violation of such public record to demonstrate to the satisfaction of the Court, the reasons which precluded him from undertaking the required due diligence or his lack of knowledge regarding the same. Hence, Respondent No. 2 had express knowledge of pendency of litigation between the Petitioners and Respondent No. 1 at least at the time of attestation of mutation No. 537 dated 16.11.2013 and as such, his application under Section 12(2) of the CPC dated 02.02.2018 was also barred by time.

39. No element of fraud, misrepresentation, concealment or want of jurisdiction is established from the contents of the Application which is clearly beyond the scope and mandate of Section 12(2) of the CPC. If such an application is allowed, perhaps no claim of any party can succeed as each time a prior collusive transaction can be alleged to defeat the duly adjudicated claim. Hence, this Application is dismissed being collusive, barred by time and beyond the purview of Section 12(2) of the CPC.

40. In Writ Petition No. 9055 / 2019, it was submitted that Respondent No. 1 filed an Execution Petition to execute the Judgment and Decree dated 31.05.2016 and an order dated 10.07.2018 was passed by the Executing Court in compliance of which a mutation No. 592 dated 20.07.2018 was attested in favor of Respondent No. 1 to give effect to the aforesaid Judgment and Decree. This prompted Respondent No. 2 to file an Objection Petition on 20.07.2018 under Section 47 of the CPC seeking withdrawal of mutation No. 592. He stated that he is in possession of the Property and after receiving threats from Respondent No. 1 regarding his possession, he obtained a stay order dated 18.07.2018 from the Court of Additional District Judge, Sahiwal with respect to his application under Section 12(2) of the CPC which was also incorporated in Revenue Record. He came to know that during the pendency of the said stay order and the titled Civil Revision before this Court, Respondent No. 1 obtained order dated 10.07.2018 from the Executing Court and in connivance with the Revenue Officials got attested mutation No. 592 dated 20.07.2018 in his favor which is unlawful and liable to be set aside.

41. Mutation No. 537 dated 16.11.2013 was attested in favor of Respondent No. 2 during the pendency of litigation between the Petitioners and Respondent No. 1. Conversely, mutation No. 592 dated 20.07.2018 was attested in favor of Respondent No. 1 under lawful orders passed by the Executing Court. Hence, the Executing Court aptly dismissed the Objection Petition by applying the principle of *lis pendens* with respect to oral sale mutation No. 537 dated 16.11.2013 attested in favor of Respondent No. 2 and ordered it to be cancelled on 10.07.2018. The Appellate Court even observed that no injunctive order was passed by it and as such, the Executing Court has committed no illegality or irregularity while passing the order under appeal.

42. For the reasons recorded in the above paragraphs, it is evident that the Objection Petition of Respondent No. 2 was not maintainable. He was not a party to the suit between the Petitioners and Respondent No. 1. The latter had a valid and executable Decree in his favor and was entitled to seek its execution in accordance with law against the Petitioners. Mutation No. 537 dated 16.11.2013 attested in favor of Respondent No. 2 was collusive and hit by the principle of *lis pendens*. Respondent No. 2 had failed to avail appropriate legal remedy against the Petitioners seeking performance of his alleged claim based on First Agreement. Accordingly, the impugned orders dismissing the Objection Petition are unexceptional.

43. The upshot of the above discussion is that the titled Civil Revision is **partially accepted**, the impugned Judgments and Decrees are modified in the manner that suit for specific performance of the Agreement of Respondent No. 1 is decreed subject to payment of compensation of Rs. 1,500,000/- (Rupees One Million Five Hundred Thousand only) by Respondent No. 1 to the Petitioners on or before 15 April 2022 before the Executing Court, failing which the suit shall be deemed to have been dismissed. The connected Writ Petitions No. 9055 / 2019 and 483 / 2020 are **dismissed**. No order as to costs.

(Abid Hussain Chattha)
Judge

Approved for reporting.